

107	Aguilar vs. Vista Paint Corporation 2022-01291751	Motion for Final Approval of Class and PAGA Settlement The court has reviewed and considered the papers filed in support of plaintiff's motion for final approval of a \$1,400,000 class action and PAGA settlement. Subject to the submission of the document described below, the tentative ruling is to grant the motion as follows: \$5,000.00 for plaintiff's enhancement payment; \$420,000.00 for attorneys' fees; \$27,866.80 for litigation costs; \$11,000 for settlement administration costs; and \$40,000 total PAGA penalties (\$30,000 to LWDA). Plaintiff is ordered to submit within 10 days the administrator's supplemental declaration cited in and supporting plaintiff's responses to issue nos. 2 and 3 in the court's prior minute order. ROA 176. While counsel relies upon and states such a supplemental declaration has been filed, it has not. See ROA 183 ¶¶ 2-3 (citing "Supplemental Declaration of Taylor Mitzner with Respect to Notice and Settlement Administrator ('Supp. Admin. Decl.')." Plaintiff is ordered to submit within 10 days a proof of service showing, in detail, that all supplemental final approval moving papers were served on the LWDA. While plaintiff counsel's represents such proof of service would be "filed concurrently with the instant submission," no such filing exists. ROA 185 ¶ 3. The final accounting hearing is scheduled for June 3, 2027 at 2:00 p.m. in Department CX102. Plaintiff shall submit a final accounting report at least 16 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. If all funds are not fully and finally disbursed by the filing deadline, counsel must request a continuance. Plaintiff shall within 5 days submit a revised final order and judgment consistent with this ruling. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
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